TALENT CHIKOBVU
versus
PETRONELLA CHIKOBVU (Nee Chinhoyi)

HIGH COURT OF ZIMBABWE
MAXWELL J
HARARE 10 September 2025 & October 2025

Civil Trial

T B Muvhami, for the Plaintiff
B Chipadza, for the Defendant

MAXWELL J:

Background

The Plaintiff and the Defendant married each other on 30 May 2015 under the then Marriage Act [*Chapter 5:11*] now the Marriages Act [*Chapter5:17*]. The marriage still subsists. The marriage was blessed with two minor children namely Evelyn Makanaka Chikobvu born on 9 October 2016 and Shona Talent Chikobvu born on 9 January 2019. On 9 December 2024 the Plaintiff sued out summons for divorce and ancillary relief. In his declaration, he stated that the marriage relationship between the parties had irretrievably broken down to such an extent that there are no reasonable prospects of restoration of a normal marriage relationship between the parties.

He proposed that the defendant be awarded custody with the plaintiff exercising access rights virtually via WhatsApp, Skype, Zoom or any other online platform as the parties may agree upon from time to time. The plaintiff averred that it is in the best interest of the minor children for him to be ordered to pay maintenance in the sum of one hundred and twenty-five United States dollars (US$ 125.00) per month per child for two minor children until the minor children turn eighteen years or become self-supporting. Further, the plaintiff shall also pay school fees for the minor children.

He proposed that the immovable property which was acquired by the parties during the marriage should be sold after the last-born child turns eighteen years of age and the proceeds be shared equally between the parties. The plaintiff pointed out that he should be

given the first option to buy out the defendant's share within six months from the date of granting of the divorce order. If the Plaintiff fails to buy out the defendant, then the defendant shall have the option to buy out the Plaintiff's share within a further period of six months from the date of the decree of divorce. If both parties fail to buy each other out then the property should be sold and the proceeds shared equally between the parties.

The Defendant filed his notice of entry of appearance to defend. In her plea, she stated that the marriage cannot be restored. She asserted that in 2022, the plaintiff filed divorce summons but the matter was abandoned since they were trying to work things out. She was opposed to the idea of exercising of access rights virtually mentioning that the children are still minors. She stated that exposing minor children to the internet may endanger their mental development. She averred that the plaintiff is not a proper candidate to be left with the minor children because of his previous bad behaviour to the minor children.

The defendant proposed that the plaintiff be ordered to maintain the minor children according to the lifestyle they are used to and pay maintenance in the sum of three hundred United states dollars (US$ 300.00) per month per minor child and also pay their school fees and uniforms separately. She further stated that the children should not be removed from the home they are used to live and that the disposal and sharing of the matrimonial house be stayed until the children reach the age of eighteen years where upon the parties would then share the property equally. She mentioned that, in the event that the court decide that the house be sold and the proceeds be shared equally, she prays that the maintenance per minor child be varied upwards immediately to cater for rentals and the whole amount for a period of years from the age of the last-born minor child up to when she reaches majority age be garnished from the share of the plaintiff.

On 15 April 2025, the Plaintiff filed his replication. In his replication, he pointed out that the parties attempted to work things out, though it proved unsuccessful. He mentioned that it is important for him to be awarded access rights virtually since he is working outside Zimbabwe. He further denies exposing the minor children to dangerous material. The plaintiff further explained that the defendant also has the duty to contribute towards the maintenance of the minor children in the total sum of as she is gainfully employed. He contended that the amount of maintenance being claimed by the defendant is excessive and is not justifiable. He stated that he is able to contribute one hundred and twenty-five United States Dollars (US$125.00) per month per child for two minor children until the minor

children turn eighteen years or become self-supporting whichever occurs first. The Plaintiff mentioned that he will also pay school fees for the minor children.

Joint Pre-Trial Conference

A Joint Pre-trial conference was held. The parties agreed to refer the following issues to trial;

1. Whether the marriage relationship has irretrievably broken down?
2. What constitutes fair access rights for the non-custodial parent?
3. What constitutes reasonable quantum of maintenance per month for each of the minor children?
4. What constitutes equitable and fair distribution of the immovable property?

Trial

At trial, counsel for the defendant submitted that the following issues were no longer being contested;

1. That the marriage has broken down irretrievably and thus a decree of divorce must be granted.
2. That the immovable property which the parties acquired during the subsistence of the marriage known as stand number 20254 Mvuu Close Budiriro 5 Cabs, Harare should be sold and proceeds shared equally between the parties, however the sale should be stayed until the last-born child turns eighteen years of age and the defendant should be awarded the first option to buy out the Plaintiff's share.
3. That custody of the minor children be granted to the defendant with the plaintiff exercising access rights virtually.

The parties could not agree on how the Plaintiff shall exercise his access rights and how much he should be ordered to pay as maintenance for the two minor children.

Issues for determination

1. Whether or not the plaintiff should be awarded virtual access rights? If so, how should this right be exercised.
2. Whether or not the plaintiff should contribute maintenance for the two minor children? If so, how much should he contribute?

Plaintiff's Case

The plaintiff gave evidence regarding his monthly income and expenses. He tendered a pay slip which shows that he earns a monthly income of US$3,000.00. After deducting his personal and household expenses (including rent, food, utilities, and internet), he is left with a disposable income of US$865.00. The plaintiff testified that from his remaining income he already pays the following in respect of the children's needs school fees US$ 1400 per term, (monthly he has to save US$ 365.00 for school fees), transport to school per month US$140.00 food and other expenses contribution US$250.00 total monthly contribution being US$755.00. The plaintiff stated that he has the ability to provide for the minor children within his means and he offered to continue paying school fees, transport, and food, which totals US$755.00 per month. He further opposed the defendant's claim that he should pay maintenance in the sum of US$600.00 per month for the two minor children over and above school fees and other school-related costs. He stated that such an amount is beyond his financial means and does not reflect the actual needs of the children.

Defendant's Case

The Defendant was the sole witness in his case. His evidence was that she is not gainfully employed but she earns US $100.00 per month from buying and selling vegetables and other vendor activities. From the US $100.00 she spends $50.00 on herself and the rest she spends it on her children. She submitted that the plaintiff should pay US$300.00 per child as maintenance and on top of that he should pay school fees, uniforms, transport and medicals.

Analysis

In terms of Section 81 (2) of the Constitution of Zimbabwe in custody decisions, the best interests of the children concerned are of paramount importance. In *Mukundu* v *Chigumadzi* HH-818-15, the court stated that:

> "It is trite that any determination which affects the rights of a child should be guided by the child's best interests"

In custody matters, if one parent is awarded custody, the other parent usually will be given access rights to spend time with the children.In *casu*, it is common cause that the parties agreed that the defendant be awarded custody of the two minor children. However, they failed to agree on how the plaintiff will exercise his virtual access. The plaintiff has

sought liberal virtual access to the children during weekends, while the defendant proposes a highly restrictive arrangement of only allowing access between 5 pm and 6 pm every Saturday.

The rights of children to parental care are provided for in section 19 (1) and 19(2) (a) and elaborated in s 81 of the Constitution. Access matters are to be decided by considering all the facts of the matter, having regard to the best interests of the child. In *Bottger* v *Bottger* HC-H 405-82, at p 7, the court held that:

> "The object of access is to nurture the affection and companionship between non-custodian parent and child, and while on the one hand it should not be of such frequency as to trespass on the control and direction of the child's daily life that is vested in the custodian parent, on the other it should not be so confined as to stultify the continuing link between child and non-custodian parent."

In *Kumirai* v *Kumirai* HH-17-06 it was held that:

> "It is trite that access, in the absence of good reason, is not to be confined to such an extent that it stultifies the nurturing of a meaningful relationship between the child and the non-custodian parent. (See *Marais* v *Marais* 1960 (1) SA 844(C) and *N* v *N* 1999 (1) ZLR 459 (H))."

In *casu,* it is important for the plaintiff to be awarded virtual access rights to the minor children, so as to maintain companionship and bond between the children and the plaintiff as the father. The virtual access by the plaintiff should not be so frequent as this would disturb the children's daily life. Both parents should have a normal relationship with their children. The benefits of such a relationship are well stated in the case of *W* v *W* 1981 ZLR 243, wherein the court held that:

> "The natural affinity and emotional bond and attachment between parent and child are generally irreplaceable and an accepted fact of life. Such an association benefits and promotes a child's emotional security and feelings, normality, whilst the award of a child's custody to a third-party place him in a distinctly unusual or abnormal category. The custody of a child should vest in one parent whilst the non-custodial parent enjoys full access rights so as to have a bond with their child."

In the present case, it is of paramount importance for the plaintiff to have virtual access to the minor children during weekends at reasonable times and on reasonable notice. The setup will help the plaintiff to have affection and bond with his children while they are growing up. The plaintiff will get the opportunity to help in shaping the personality, influence decision-making in the children's life and future. There is no reason to stultify the nurturing of a meaningful relationship between the plaintiff and the minor children. This helps the children to have security of having both parents present in their lives.

How much should the plaintiff contribute towards maintenance of the minor children?

Section 6 (4) of the Maintenance Act [*Chapter 5:09*] encourages a court to have regard to the general standard of living of the responsible person and the dependant, including their social status; the means of the responsible person and the dependant; the number of persons to be supported; and whether the dependant or any of his parents are able to work and if so whether it is desirable that they should do so. In the case of *Kasu* v *Kasu* HH 106/18, the law on maintenance was aptly set out as follows:

> "On maintenance payable for the children, the needs of the children have to be balanced against the means of the person responsible for payment of maintenance. It is however the obligation of both parents to maintain their children each according to their means and at the same time trying to ensure that the children enjoy the quality of life they were accustomed to before the divorce."

It is trite law that it is the duty of both parents to maintain children according to their respective means. It was the defendant's evidence that the plaintiff should be liable to pay children's maintenance in the sum of US$ 600.00 per month for the two minor children over and above school fees and other school-related costs. The defendant averred that such an amount does not reflect the actual needs of the children. The Plaintiff gave evidence supported by documentary proof regarding his monthly income and expenses. He tendered a pay slip which shows that he earns a monthly income of US$3, 000.00 after deducting his personal and household expenses, he is left with a disposable income of US$865.00.

It was the plaintiff's evidence that from his remaining income, he already pays school fees US$ 1 400 per term, (monthly he has to save US$ 365.00 for school fees, transport to school per month US$ 140.00, food and other expenses contribution US$250.00, thus having a total monthly contribution of US$755.00. It is justifiable for the plaintiff to continue paying the above payments given his financial obligations. The plaintiff is to contribute US$ 125.00 per month, per child as maintenance, pay medical aid and also pays school fees as well as school transport.

DISPOSITION

1. A decree of divorce be and is hereby granted.

2. Custody of two minor children namely Evelyn Makanaka Chikobvu born on the 9 October 2016 and Shona Talent Junior Chikobvu born on the 9 January 2019, be and is hereby awarded to the defendant.
3. The plaintiff is to exercise virtual access rights over the children during weekends at reasonable times and on reasonable notice to the defendant.
4. Plaintiff be and is hereby ordered to contribute school uniforms, pay school fees as well as school transport, pay medical aid and pay maintenance in the sum of US$ 125.00 per month, until each child attains the age of majority or becomes self-supporting.
5. When the last-born child turns the age of eighteen, Stand No. 20254 Mvuu Clause, Budiriro 5 shall be valued by a valuer appointed by the Registrar on the list of valuers on his panel within 30days of such child attaining 18 years, the costs of the valuation shall be met by the parties in equal shares.
6. The defendant will have the first option to buy out the plaintiff by paying him his 50% share of the property within 3 months of the date of receipt of the valuation report, failure of which the plaintiff shall be given the second option to buy out the defendant's share within a further 3 months.
7. In the event that both parties fail to exercise their rights under paragraph [6] above Stand No. 20254 Mvuu Clause, Budiriro 5 shall be sold to best advantage and the proceeds from the sale shall be shared equally between the parties.
8. Each party is to bear its costs.



Muvhami Attorneys, Plaintiff's legal practitioners.
B. Chipadza Law Chambers, Defendant's legal practitioners